

SEP 21 1993



U.S. Department
of Transportation

Research and
Special Programs
Administration

DOT-E 11124

400 Seventh Street, S.W.
Washington, D.C. 20590

EXPIRATION DATE: September 1, 1995

(FOR RENEWAL, SEE 49 CFR SECTION 107.105.)

1. GRANTEE: Canadian National Railway Company
Montreal, Quebec, Canada (U. S. Agent: Hopkin &
Sutter, Washington, DC)
2. PURPOSE AND LIMITATION: This exemption authorizes those
Canadian based employees of Canadian National Railway Co.,
who are engaged in infrequent and limited transportation of
hazardous materials into the United States, to be trained
and receive recurrent training every three years in
accordance with Part 9 of the Transportation of Dangerous
Goods (TDG) Regulations in place of the training, and two
year recurrent training, requirements of 49 CFR Part 172,
Subpart H. This exemption provides no relief from any
regulation other than as specifically stated.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-
180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Section
172.704(c)(2).
5. BASIS. This exemption is based on Canadian National
Railway Company's application dated September 10, 1993,
submitted in accordance with 49 CFR 107.113 and a
determination that it is necessary to preclude a serious
economic loss.
6. HAZARDOUS MATERIALS (49 CFR 172.101): Any, as authorized
for transportation by railroad.
7. SAFETY CONTROL MEASURES: This exemption is limited to those
employees of CN Rail who have been trained in conformance
with Part 9 of the TDG Regulations. Operations using such
employees are limited to direct movements between the United
States/Canada border to terminals located in:

Island Pond, Vermont; St. Albans, Vermont;
Rouses Point, New York; Massena, New York;
Buffalo, New York (Frontier Yard); Port
Huron, Michigan; Detroit, Michigan (River
Rouge Yard) Detroit, Michigan (Flat Rock
Yard); Ranier, Minnesota; Northwest Angle,
State of Minnesota.

8. SPECIAL PROVISIONS. A copy of this exemption, in its current status, must be maintained at each terminal identified in Paragraph 7 above and must be made available to a DOT representative upon request.

MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

10. MODAL REQUIREMENTS: Not as a condition of this exemption.
11. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Hazardous Materials Transportation Act:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Any use or application of this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary.
 - o Registration required by 49 CFR 107.601 et seq., when applicable.
12. REPORTING REQUIREMENTS. Not as a condition of the exemption.

Issued at Washington, D.C.:


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FRA